

Documentation for Youth Seeking Subminimum Wage

Section 511 of the federal Workforce Innovation and Opportunity Act of 2014 (WIOA), which took effect July 22, 2016, is intended to place limits on the payment of subminimum wage to individuals with disabilities, using special wage certificates under Section 14(c) of the Fair Labor Standards Act (FLSA). OOD is required to provide documentation to individuals seeking subminimum wage within 45 days of completion of all required activities.

Within Section 511 there is a particular focus on youth 24 and younger, and a required series of steps that must be completed prior to a certificate holder paying the youth subminimum wage. These steps are outlined below:

1. ***Pre-employment Transition Services or Transition Services have been provided.*** The individual has received pre-employment transition services as defined by WIOA which authorizes the VR program, or transition services as defined by the Individuals with Disabilities Education Act (IDEA) which authorizes special education programming.
2. ***The individual has applied for VR services and has been found ineligible or had their case closed without an employment outcome.*** Closure without an employment outcome means that the individual has been determined eligible for VR services, has received services per the Individualized Plan for Employment, has been working toward an employment outcome (with supports and services) for a reasonable period of time¹ without success, and the individual's VR case is closed.
3. ***The individual has been provided career counseling, and information and referrals to public programs and other locally available resources that offer employment-related services and supports designed to attain competitive integrated employment.*** These services may not include work compensated at subminimum wage, or result in employment at subminimum wage. The individual must receive career counseling every six months for the first year of employment and annually thereafter.

This document will serve as verification that the requisite steps have been completed prior to payment of subminimum wage.

Individual's Name [Click here to enter text.](#)

VR Counselor's Name: [Click here to enter text.](#)

Name of School District: [Click here to enter text.](#)

End Date of last Individualized Education Program (IEP): [Click here to enter text.](#)

Did this student receive transition services under an IEP or pre-employment transition services?

☐ Yes ☐ No

Did this student receive transition services or pre-employment transition services from OOD or the school or both? ☐ OOD ☐ School

¹ Reasonable period of time must take into account the disability-related and vocational needs of the individual, as well as the anticipated length of time required to complete the services identified in the individualized plan for employment to achieve an employment outcome.

Pre-employment transition services include:

- Job exploration counseling
- Work-based learning experiences
- Counseling on postsecondary educational programs at institutions of higher education
- Workplace readiness training to develop social skills and independent living
- Instruction in self-advocacy, which may include peer mentoring

Transition services include:

- Instruction
- Related services
- Community experiences
- The development of employment and other post-school living objectives
- Acquisition of daily living skills and provision of functional vocational evaluation.

Part 2

Did the individual apply for Vocational Rehabilitation Services? ☐ Yes ☐ No

Age at application? [Click here to enter text.](#)

Was the individual found eligible or ineligible? ☐ Eligible ☐ Ineligible

Date of Eligibility Determination: [Click here to enter text.](#)

If found ineligible, what was the reason for the determination? [Click here to enter text.](#)

If found eligible, did the individual receive services under an Individualized Plan for Employment (IPE), and work towards an employment outcome for a reasonable period of time² before their case was closed without an employment outcome? ☐ Yes ☐ No

Date of signed IPE?: [Click here to enter text.](#)

Date of Case Closure: [Click here to enter text.](#)

Reason for Case Closure: [Click here to enter text.](#)

Part 3

Was the individual provided career counseling, information and referrals to public programs and other locally available resources that offer employment-related service and supports designed to attain competitive, integrated employment?: ☐ Yes ☐ No

Date of career counseling: [Click here to enter text.](#)

VR Counselor Signature: _____ Date: _____

Two copies of this form were provided to the individual on this date, [Click here to enter text.](#) by the following method:

☐ Hand-delivered ☐ E-mail ☐ US Mail ☐ Other

² Reasonable period of time must take into account the disability-related and vocational needs of the individual, as well as the anticipated length of time required to complete the services identified in the individualized plan for employment to achieve an employment outcome.